

## 25STCV15497 25STCV15497

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-22

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Case Number: 25STCV15497 Hearing Date: September 22, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

RON FRIEDMAN, et al

vs.

ERAN PICK, et al.

and

LIQUIDATE DIRECT, LLC

Nominal Defendant.

Case

No.: 25STCV15497

Hearing Date: September 22, 2026

Plaintiffs'

motion to compel Defendant Channels Manager's compliance with their RFPs (Set

One) is DENIED.

On

5/29/2025, Plaintiffs Ron Friedman and Roy Livyatan (collectively, Plaintiffs) filed suit against Eran Pick, Open Retail, Inc., and Channels Managers, Inc. (collectively, Defendants) and nominal Defendant Liquidate Direct, LLC.

On 2/18/2026,

Plaintiffs filed a second amended complaint (SAC) alleging: (1) breach of fiduciary duty—derivative; (2) breach of fiduciary duty—direct; (3) aiding and abetting breach of fiduciary duty—derivative; (4) conversion—derivative; (5) aiding and abetting conversion—derivative; (6) civil theft; (7) intentional interference with prospective economic advantage—derivative; (8) negligent interference with prospective economic advantage—derivative; (9) unfair business practices; and (10) an accounting.

On 8/25/2026,

Plaintiffs moved to compel Defendant Channels Manager (CM or Channels Manager) to comply with Plaintiffs' Requests for Production (RFPs) (Set One).

Discussion

Plaintiffs

seek to compel CM to produce documents responsive to their RFP Nos. 1-34.

In

opposition, Defendant explains that on 2/26/2026, Defendants served responses with objections. Defendant's initial written responses to the Requests contained language that was inadvertently carried over from Defendant's response to Special Interrogatories. Specifically, Defendant's response to each category of documents in the Request contained the following language:

Responding

Party objects to this interrogatory on the ground that it improperly requires Responding Party to make a compilation, abstract, audit, or summary of documents where the burden of deriving the answer is substantially the same for Propounding Party as for Responding Party. (Code Civ. Proc., § 2030.230.) Pursuant to section 2030.230, the records from which the answer may be derived or ascertained will be made available for inspection.

(See  
Patterson Dec., ¶ 4.)

On 6/17/2026,  
subsequent to the Court ruling on Defendants' demurrer and motion for  
protective order, Defendants (including CM) supplemented their prior written  
responses to the discovery (including the Requests). These supplemental  
responses, including to the Requests, amended and corrected Defendants' prior  
responses and were intended to "amend, supplement, and supersede in their  
entirety the responses previously served by [Defendants] on or about February  
26, 2026." (See Patterson Dec., ¶ 5, Ex. C; Opp., 5: 21-26.)

Defendant's  
responses to the categories of documents included agreements to produce in  
whole (16 categories), in part (3 categories), that after a diligent search and  
reasonable inquiry it was unable to comply with the category (3 categories),  
and objections to producing any documents based on financial privacy, the  
prohibition regarding financial discovery relating to punitive damages as set  
forth in Civil Code, section 3295, or other objections (12 categories).  
(Patterson Dec., ¶ 7.)

Then on  
7/13/2026, Defendants produced approximately 3,650 pages of documents. (See  
Patterson Dec., ¶ 9.)

As such,  
there appears to be a disagreement between the parties as to whether  
Defendant's initial (and admittedly erroneous) production from February 2026 is  
controlling, or whether the supplemental responses served in June 2026 are.

After review,  
the Court finds the June 2026 responses to be operative. While Plaintiffs argue  
that Defendant had no right to supplement its response to the Request and is  
bound by its initial responses, the code clearly indicates that the service of  
supplemental responses to requests for production of documents was  
contemplated. (Cal. Code Civ. Proc., § 2031.310, subd. (c)—"Unless notice of  
this motion is given within 45 days of the service of the verified response, or  
any supplemental verified response, or on or before any specific later date to  
which the demanding party and the responding party have agreed in writing, the  
demanding party waives any right to compel a further response to the demand.")

Additional

case law suggests that parties may serve supplemental responses to inspection demands. For example, courts have held that the service of a supplemental written response to an inspection demand does not divest the Court of authority to rule on a pending motion to compel. (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256.) The Court did not hold that a party must first obtain leave of court to serve the supplemental response, nor did the Court hold that a voluntary supplemental response is unauthorized. The Court only held that it had the power to decide the pending motion to compel regardless of the service of a supplemental response.

Nothing in

the code forbids a party from serving a voluntary supplemental response to an inspection demand, and public policy generally does not favor “gotcha” maneuvers.

Based on the

foregoing, Plaintiffs’ motion to compel Defendant Channels Manager’s compliance with their RFPs (Set One) is denied.

It is so ordered.

Dated: September  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must send an email to the court at [smcdept17@lacourt.org](mailto:smcdept17@lacourt.org) by 4 p.m. the day prior as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.